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California Bill to Prohibit Foods Containing Synthetic Dyes from Being Served in Schools

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Assemblymember Jesse Gabriel unveiled Assembly Bill (AB) 2316 on Tuesday, March 12, that would prohibit public schools from serving foods containing seven additives that have been linked to harming the health of children.

This new bill targets six synthetic food dyes – red dye No. 40, yellow dye No. 5, yellow dye No. 6, blue dye No. 1, blue dye No. 2 and green dye No. 3 – and the coloring agent titanium dioxide. Synthetic food dyes have been linked with hyperactivity, inattentiveness and restlessness in some children, and titanium dioxide can damage a person's DNA.

AB 2316 will be Gabriel's second attempt to ban titanium dioxide in California foods. It was originally included in the California Food Safety Act that passed in October 2023 but was removed in the State Senate after Gabriel felt there wasn't enough bipartisan support. Nonetheless, he expressed optimism that this time around, he'll have more colleagues from both sides of the aisle supporting the bill.

In 2021, the California Office of Environmental Health Hazard Assessment (OEHHA) released a report that found that synthetic dyes are associated with adverse neurobehavioral problems in sensitive children, both with and without pre-existing behavioral disorders. A 2021 assessment by the European Food Safety Authority concluded that titanium dioxide can damage a person's DNA.

Titanium dioxide is used in popular candies such as Skittles, Nerds, Starburst and Sour Patch Kids. The identified food dyes can be found in a variety of foods including cereals, sodas, yogurt, baked goods and fruit juices. Some examples are Doritos, Froot Loops, Lucky Charms, Pillsbury Toaster Strudel pastries and M&Ms. Despite their harmful impact, all six dyes have been approved by the Food and Drug Administration (FDA).

"As somebody who's struggled with ADHD as a child, as the father of a son with ADHD, this is very personal to me," Gabriel said. "When our kids struggle, we spend a significant amount of time and resources and interventions to help these young people succeed. And so, it's totally self-defeating, it harms our kids and it undermines our investments when … at lunch, we expose them to chemicals that undo all of that good work and exacerbate their challenges."

This is Gabriel's second bill targeting harmful chemicals in processed foods and drinks after the California Food Safety Act, which will prohibit the manufacture, sale or distribution of any food product containing four chemicals – red dye No. 3, potassium bromate, brominated vegetable oil and propylparaben – linked to significant health harms by 2027.

Similar to that legislation, though, AB 2316 does not seek to ban any specific foods or products. Rather, the aim is to have companies make modifications to their products if they want to be sold in California public schools to protect the health of children.

"Let's be clear, that's a big market," Gabriel said. "California public schools serve nearly 3 million free lunches and 1.5 million free breakfasts every school day. So the goal here is to protect kids here in California and hopefully prompt a nationwide transition to safer alternative ingredients."

Gabriel added that the U.S. is a global outlier in food safety. In the European Union, products containing the dyes are required to carry a warning label about their potential harm to children, while titanium dioxide is banned for use in foods.

Award-winning chef Tom Colicchio said that he wants a nationwide ban on these additives. As someone who's also been diagnosed with ADHD and is the parent of children with the same clinical diagnosis, he has to be very careful with what food he brings into his home. However, that work is for naught if the same care isn't applied to what they eat at school.

"A very small percentage of foods that are in the school system are affected by this so food companies aren't going to really go through a major hardship on this," Colicchio said. "They can very easily change some of their practices."

In the 2021 OEHHA report, researchers also found that the studies the FDA is basing its acceptable daily intake (ADI) levels for the food dyes are 35 to 70 years old and weren't designed to detect types of behavioral effects that've been observed in children.

Scott Faber – senior vice president for government affairs, Environmental Working Group – bluntly said, "The truth is the FDA is not doing their job, and we know because California scientific experts have told us that these chemicals are making it harder for our kids to learn at school. Only one of these chemicals is on the FDA's to-do list to review and it's only because groups like Consumer Reports, which is a co-sponsor of this bill, submitted ... a formal petition to the FDA.

"We can't continue to wait for the FDA. We've got to do what's best for our kids and for our parents and teachers and we've got to end the use of these toxic chemicals in food."

"There's no downside to enacting this bill. The only losers here are chemical companies," Gabriel said. "The manufacturers can still make the foods our kids love. ... Our kids will be the unquestionable winners of all of this."

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